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Sacramento - Checking in on wildfire legislation, following destructive LA blazes

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In the immediate aftermath of the January wildfires that ravaged Los Angeles County, state legislators rushed to introduce bills, pledging to provide relief to those who lost their homes or businesses, strengthen firefighting efforts and harden communities so they're better equipped to protect themselves against future fires.

Four months after the wildfires broke out, some bills have already died while dozens of others are still making their way through the legislative process.

Where it gets tricky is the money aspect.

Many bills, because they would impact the state budget, are still waiting to be OK'd by appropriations committees. And even ones that have seen early success could still face hurdles — particularly if they come with a hefty price tag, given the uncertainty of the state budget for the upcoming fiscal year.

Efforts to provide mortgage relief, expedite permit approval processes for new homes and ensure homeowners get the full insurance payout are still in the works in the California Legislature.

Here's a quick snapshot of a few wildfire-related bills that recently passed out of the Assembly but still need to be voted on in the Senate.

AB 226 would authorize the California FAIR Plan Association, which administers the state's insurance program for property owners who can't get insured through the traditional marketplace, to seek bonds or to enter into a loan agreement with the California Infrastructure and Economic Development Bank to finance claim payouts.

Authors of the bill say the legislation would provide a financial tool to allow the FAIR Plan — which has heard from thousands of homeowners impacted by the Palisades and Eaton fires — to make claims payments while spreading out costs to the plan over time to help stabilize the insurance market.

Assemblymembers Lisa Calderon, D-Whittier, and David Alvarez, D-San Diego, are the lead authors of the bill, with Insurance Commissioner Ricardo Lara supporting it.

AB 238 would allow borrowers impacted by the wildfires to request a forbearance of monthly mortgage payments for up to nearly a year. The bill, authored by Assemblymembers John Harabedian, D-Pasadena, and Jacqui Irwin, D-Thousand Oaks, is modeled after the federal CARES Act that allowed for mortgage forbearance during the COVID-19 pandemic.

Similar legislation has been introduced in Congress by Reps. Judy Chu, D-Pasadena, and Brad Sherman, D-Sherman Oaks.

AB 253 seeks to expedite the approval process for those needing building permits for small residential projects, benefiting homeowners looking to rebuild after the wildfires, as well as others in the state. Specifically, the bill would allow a property owner or developer to hire a private, third-party professional to check plans submitted as part of a building permit application, to ensure compliance with state laws or local ordinances, if the city or county's own building department can't complete the check within 30 days.

Assemblymembers Christopher Ward, D-San Diego, Sharon Quirk-Silva, D-Fullerton, and Speaker Robert Rivas, D-

Salinas, are the lead authors of the bill.

AB 299, by Assemblymember Jesse Gabriel, D-Encino, and Rivas, would allow hotels, motels and short-term rentals to house individuals who lose their homes in a disaster for more than 30 days without it counting as a landlord-tenant relationship.

Currently, some landlords won't rent out their places for more than 30 days because an existing law gives tenancy rights to people who stay longer than that. The intent of the bill is to encourage more landlords to rent out hotel, motel or Airbnb rooms to wildfire victims for longer periods of time to provide housing stability.

AB 301 would accelerate the state permit review process for housing projects by requiring state agencies to follow specific approval timelines, just as local governments are required to do. Speeding up the timeline for building new homes will help address the state's housing crisis and also help those recovering from the Southern California wildfires, bill sponsors say. Assemblymembers Pilar Schiavo, D-Chatsworth, and Rivas are the main authors of the bill.

AB 306, by Assemblymembers Nick Schultz, D-Burbank, and Rivas, would place a moratorium on modifying or adopting new state or local building standards for residential units — except in specified cases, including standards to protect health and safety or to harden homes, as proposed by the state fire marshal.

The intent is to give homeowners who are rebuilding after the wildfires greater certainty about what to expect in terms of building standards.

AB 311, by Assemblymembers Tina McKinnor, D-Inglewood, and Rivas, would temporarily allow a tenant to let another person at risk of homelessness, or that person's pet, move into their unit with written approval from the property owner or landlord.

This would apply to a person facing homelessness due to a "disaster in a disaster-stricken area" where the governor has declared a state of emergency. The bill would allow a landlord to charge additional rent if a pet moves in, as long as the lease authorizes that.

AB 462, authored by Assemblymember Josh Lowenthal and Rivas, would exempt the construction of accessory dwelling units, or ADUs, in coastal zones in a county where the governor has declared a state of emergency from needing a coastal development permit from the California Coastal Commission or a local government.

This would apply in situations where a home was damaged, destroyed or made uninhabitable by the event that caused the state of emergency. It would only apply to areas classified a state of emergency on or after Feb. 1,

AB 493, another bill authored by Harabedian, is sponsored by Gov. Gavin Newsom. The legislation would ensure that homeowners receiving an insurance payout for damaged or destroyed properties would also receive the interest accrued on that amount while the money was held in escrow.

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